Judicial Practices and Procedures
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A. Communications with the Judicial Office

- **Method of Communication:** All communications to the judicial office must be submitted by e-mail to ircjudge@circuit19.org. The subject line must contain the case number, case name, and relevant matter (e.g., 2024 CC 001234 – Doe v. Doe - 2-Hour Hearing Requested).

- **Ex parte Communications:** All communications with the judicial office must comply with Canon 3 of the Code of Judicial Conduct, which prohibits a judge from initiating, permitting, or considering ex parte communications and from considering other communications outside the presence of the parties concerning a pending or impending proceeding, unless authorized by law. All parties must be copied on any e-mail directed to the judicial office, unless an ex parte communication is authorized by law.

- **Unsolicited Communications:** Unsolicited communications from non-parties will not be considered by the court. Parties may only contact the judicial office in accordance with these practices and procedures.

- **E-Filing Portal Contact Information:** All attorneys and self-represented litigants must provide an e-mail address to receive signed orders electronically, unless excused. Fla. R. Gen. Prac. & Jud. Admin. 2.516. It is the responsibility of attorneys and self-represented litigants to update their contact information using Form 2.603 any time there is a change in the e-mail account registered for electronic service.

- **Response to Inquiries:** The judicial assistant is not authorized to provide legal advice.

B. Scheduling Procedures

Uniform motions are heard every Thursday at 2:30pm. Notice of hearing shall be filed within 48 hours of the hearing

- **Scheduling All Other Motion Hearings:** Hearings must be requested by e-mail to ircjudge@circuit19.org.

- **Notice of Hearing:** A Notice of Hearing must be filed and served immediately after reserving hearing time. A notice of hearing involving any remote appearance must list the judicial Zoom credentials. All notices of hearing must contain the ADA notification required by Florida Rule of General Practice and Judicial Administration 2.540.

- **Submission Deadlines:** The Court must receive all materials for the hearing no later than three (3) business days before the hearing.

- **Order of Proceedings:** Parties represented by attorneys will generally be heard first.

- **Continuance Procedure:** Continuances are disfavored and will be granted only upon good cause shown. A request for continuance must be submitted at least five (5) days prior to the scheduled court date. Except for good cause shown, the motion must be signed by the party requesting the continuance, as required by Florida Rule of General Practice and Judicial Administration 2.545(e).

- **Cancelling Hearings:** You must cancel hearings by notifying the judicial assistant immediately by email. You must also immediately file and serve a notice of cancellation on opposing counsel and any self-represented

litigant.

C. Remote Appearance for Civil Hearings/Trials

- **Remote Appearance Procedure:** Requests to use communication technology for an appearance must be made by motion.

- **Platform Used:** The court uses Zoom telephone and/or video for remote appearances.

- **Platform Meeting ID#:** Contact the judicial assistant to obtain the platform meeting ID#.

D. Submission of Orders and Judgments

- **Format:** All proposed orders must be submitted in Word format. All proposed orders must be accompanied by a cover letter either (1) certifying that all parties agree to the order or (2) containing a statement identifying any disagreement of the parties as to the proposed order.

- **Submission Method:** Sent in Word format by e-mail to ircjudge@circuit19.org

- **Deadline for Submissions:** Proposed orders must be submitted within 10 days after any hearing or as instructed by the Court at the time of hearing/trial.

E. Courtesy Copies of Case Law and Other Documents

- **When Required:** Courtesy copies of case law or other specified documents must be submitted to the court for any evidentiary proceeding.

- **Submission Method:** Sent by email to ircjudge@circuit19.org.

- **Deadline for Submissions:** Courtesy copies must be delivered to the court no later than two (2) days before any evidentiary proceeding.

F. Emergency and Other Urgent Matters

- **Requirements:** If a party believes there is a factual basis for setting an emergency hearing, a detailed motion setting forth the following must be filed: (1) the issues to be resolved, (2) reasons why an emergency

hearing is necessary, and (3) the amount of time needed for each party's presentation. A copy of the motion must be sent to the judicial assistant by email once it has been e-filed.

- **Scheduling:** If the court determines that an emergency exists, a hearing will be scheduled unilaterally by the court. All parties shall make themselves available for the emergency hearing, barring exigent circumstances.

G. Exhibits for Evidentiary Proceedings

- **Format:** Exhibits must be submitted to the clerk of court in paper format. All attorneys and self-represented litigants must bring sufficient copies of each exhibit for the clerk, the court, and each party to review during the hearing or trial. Exhibits must be labeled in the following format: 'Petitioner/Plaintiff 1' or 'Respondent/Defendant A.'

H. Pretrial Procedures and Conferences

- **Case Management Conference ("CMC"):** Unless excused by the court in advance, all CMCs are mandatory for attorneys and self-represented litigants. Parties represented by counsel are not required to appear at a CMC hearing.

- **Status Conference:** Any party may request a status conference when a case requires.

- **Requirements:** Any request for a status conference must articulate the reasons for the necessity of the conference.

- **Scheduling:** If the court agrees that a status conference is required, the moving party shall contact the Court to schedule a hearing.

I. Setting Case for Trial

- **Procedure:** File a notice for trial to set the case for trial.

- **Notice Period:** After the pre-trial conference and/or case management conference, the court will assign cases to specific days during the trial period and may assign back-up cases. Attorneys, self-represented litigants, parties, and witnesses are expected to be available during the entire trial period.

J. Other Division Procedures

- **ADA Accommodations:** If you need an ADA accommodation, please contact Kate Bradford, Esq., General Counsel at bradfordk@circuit19.org or by phone at (772) 807-4370.